

TENTATIVE RULING FOR LLTSB2600024
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

MCM Quality Investments, LLC v. Sanchez, et al

Motion: Attorney Fees

Movant: Juan R. Sanchez, Jr. (Sanchez/Defendant)

Respondent: MCM Quality Investment, LLC (MCM/Plaintiff)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On March 2, 2026, Plaintiff filed an unlawful detainer complaint against Defendant. On or about August 9, 2021, Plaintiff and Defendant entered into a one year lease for the subject residential property. On or about April 6, 2025, Plaintiff caused to be served on Defendant Notice of Change in Terms of Tenancy. On June 18, 2026, the Court granted Defendant's motion for summary judgment. On July 6, 2026, Defendant filed this motion for attorney's fees. Defendant seeks \$10,000 in attorney's fees (20 hours at \$500 per hour) plus \$298.31 in costs. Plaintiff opposes.

ANALYSIS

Generally, attorney fees are borne by each party. (*Pederson v. Kennedy* (1982) 128 Cal. App. 3d 976, 978-79; *see also* Code Civ. Proc., §1021 ["Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties...."].) Nonetheless, attorney fees are recoverable in litigation when authorized by contract, statute, or law. (Code Civ. Proc., §1033.5(a)(10).)

The trial court has broad authority to determine the amount of a reasonable fee. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.) Competent evidence as to the nature and value of the services rendered must be presented on a motion for attorney's fees. Detailed time records are not required, and an attorney's testimony alone may suffice. (*Martino v. Denevi* (1986) 182 Cal. App. 3d 553, 559.) Nonetheless, where time records are submitted, such are a starting point for the court's lodestar determination. (*Horsford v. Board of Trustees of Calif State Univ.* (2005) 132 Cal. App. 4th 359, 397.)

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Civil Code section 1717, subdivision (a) provides in part:

In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

In the case at hand, the only available ground for recovery of attorney fees is under the lease agreement. Defendant's Exhibit 1 purports to be the clause which entitled him to attorney fees. Exhibit 1 to the motion is a one-page document in Spanish and a one-page document in English with no official translation attestation. The court cannot accept Exhibit 1 as the document which supports a legal basis for attorney fees. In opposition, Plaintiff attaches as Exhibit 1 what purports to be the full lease agreement. However, this document is also in Spanish with no official translation. In any event, the opposition acknowledges a clause 23 in regard to attorney fees, but argues the fees are capped, Defendant is not the prevailing party and the fees requested are excessive if not capped. The Court will therefore find that the parties herein entered into a lease agreement which contains Clause 23. Attorney Fees, a prevailing party provision.

Prevailing Party

"[W]hen one party obtains a 'simple, unqualified win' on the single contract claim presented by the action, the trial court may not invoke equitable considerations unrelated to litigation success." (*Hsu v. Abbata* (1995) 9 Cal.4th 863, 877.) Plaintiff fails to demonstrate why as between two parties Defendant should be made to suffer from the alleged wrongful acts of the third-party rather than Plaintiff.

Clause 23 of the lease agreement apparently provides for the prevailing party on "an action to enforce the terms of this agreement or to recover possession of the premises" is entitled to recovery of attorney's fees. Plaintiff clearly brought an action to recover possession. The prevailing party is entitled to attorney fees under the clear language of the agreement. Defendant clearly prevailed regardless of the reason.

Attorney Fee Cap

California Civil Code Section 827 states in pertinent part:

Except as provided in subdivision (b), in all leases of lands or tenements, or of any interest therein, from week to week, month to month, or other period less than a month, the landlord may, upon giving notice in writing to the tenant, in the manner

prescribed by [*Section 1162 of the Code of Civil Procedure*](#), change the terms of the lease to take effect, as to tenancies for less than one month, upon the expiration of a period at least as long as the term of the hiring itself, and, as to tenancies from month to month, to take effect at the expiration of not less than 30 days, but if that change takes effect within a rental term, the rent accruing from the first day of the term to the date of that change shall be computed at the rental rate obtained immediately prior to that change; provided, however, that it shall be competent for the parties to provide by an agreement in writing that a notice changing the terms thereof may be given at any time not less than seven days before the expiration of a term, to be effective upon the expiration of the term.

Plaintiff has established that on April 6, 2025, they properly served the Notice of Change in Terms of Tenancy. As such, 30 days after service of the Notice of Change in Terms of Tenancy, Clause 23 was modified to provide a cap for attorney fees and costs of \$500.00. As the Court finds that attorney fees are capped at \$500, it will not address the excessive attorney fee request by the moving party.

RULING

1. Plaintiff's request for judicial notice is DENIED. The Court finds sufficient foundation has been provided for the authenticity of Plaintiff's Exhibit 2. Exhibit 1 is in Spanish and shall not be considered by the Court.
2. The Court finds that Defendant is the prevailing party in the underlying action. The Court finds that Clause 23 of the residential lease agreement was modified pursuant to Civil Code 827 to a \$500.00 cap. The Court awards Defendant \$500.00 in attorney fees and \$298.31 in costs to be paid by Plaintiff within 10 days.
3. Movant to give Notice.